

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.,

**JOINT STATUS REPORT AND MOTION TO EXTEND THE DEADLINE TO COMPLETE
DEPOSITIONS OF FACT WITNESSES**

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹. (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report and motion to extend the deadline to complete depositions of fact witnesses, solely for third-party fact witnesses pursuant to the Presiding Officer’s Third Amended Scheduling Order of September 17, 2025 (the “Third Amended Scheduling Order”), and in support thereof state that good cause for the requested extension exists, as follows:

1. Rule 102(a) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: “Motions for enlargement or reduction of

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023, by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.”

2. On August 18, 2025, the Parties filed a Joint Status Report and Motion to Extend Deadlines based upon the Parties’ necessity for Yusen Logistics (Americas) Inc. (“Yusen”) documents and the testimony of Yusen employees. On August 15, 2025, Yusen made a production of 10,919 documents, which included 46,354 images, 5,054 natives, and 10,919 text files, and also required additional time for conversion of the files by BBBY’s document service provider. The Parties agreed that they required additional time to review the Yusen production and conduct the depositions of one or more Yusen witnesses in order for the Parties to each have a fair opportunity to present their respective cases, and subsequently requested such relief from the Presiding Officer.

3. On September 17, 2025, the Presiding Officer entered the Third Amended Scheduling Order, which established the current discovery schedule in this proceeding. While noting the importance of outstanding discovery, in particular highlighting that Yusen managed all of BBBY’s bookings, the Third Amended Scheduling Order included a new deadline of October 31, 2025 to complete depositions of third-party fact witnesses to allow for adequate document review prior to deposing witnesses from Yusen.

4. The Parties determined they would depose Yusen employees Rita Shippee and Amanda Jacobus as non-party fact witnesses in this proceeding. Since July 2025, the Parties have been working productively with Yusen’s counsel to schedule the depositions of Ms. Shippee and Ms. Jacobus. While the Parties and Yusen initially tried for deposition dates in August 2025, the delay in processing Yusen’s voluminous production until late August 2025 necessitated additional time for the Parties to review in preparation for the depositions. In late September 2025, following the issuance of the Third Amended Scheduling Order, the Parties continued to work with Yusen to schedule the depositions of Ms. Shippee and Ms. Jacobus ahead of the October 31, 2025

deadline. On October 16, 2025, while the Parties continued to discuss the scheduling of depositions, Yusen made an additional production of 7 documents, 29 images, and 7 text files, without any natives, further necessitating additional time for the Parties to review in preparation for the depositions.

5. While Ms. Shippee had availability in October 2025 (her deposition was completed on October 22, 2025), Yusen notified the Parties that Ms. Jacobus “expressed difficulty with scheduling for the month of October” and that she asked to schedule in November 2025. For the sake of expediency, the Parties discussed requesting a limited extension from the Presiding Officer and proposed deposition times during the first week of November to accommodate Ms. Jacobus’ schedule. Yusen’s counsel and the Parties confirmed the date November 6, 2025. Ms. Jacobus’ deposition, currently scheduled for November 6, 2025, will be the last deposition of fact witnesses to occur, as party witness depositions concluded on August 28, 2025, and Ms. Jacobus and Ms. Shippee are the only non-party witnesses being deposed in this proceeding.

6. Accordingly, based solely upon the necessity for testimony from all Yusen non-party witnesses determined to be relevant to this proceeding, in order for the Parties to each have a fair opportunity to present their respective cases, the Parties respectfully request that the current discovery deadline for the completion of depositions of fact witnesses be extended until November 7, 2025 for the limited purpose of holding Ms. Jacobus’ deposition on November 6, 2025 (and to allow for any necessary continuance to the next day, which is highly unlikely).

7. Counsel for the Parties agree that, under the circumstances, this Joint Status Report and Motion to Extend the Deadline to Complete Depositions of Fact Witnesses is warranted for good cause and that extreme prejudice to both Parties would result if an extension of time to complete the depositions of fact witnesses is not granted

8. The Parties have conferred extensively, among themselves and with Yusen, to accommodate Ms. Jacobus' scheduling needs while also being mindful of the ordered deadlines. As such, the Parties have arrived at the following proposed revised schedule, which only changes the deadline to complete the depositions of fact witnesses to account for Ms. Jacobus' availability. The Parties agree that all other deadlines in this proceeding will remain as scheduled by the Third Amended Scheduling Order, and are not seeking any other extension or amendment to the schedule at this time.

9. Complainant is seeking approximately \$86,000,000 in reparations in this case. Given the scope and complexity of the claims and defenses, and the challenges posed by the non-party depositions, the Parties believe it would be most effective, efficient and preserve the Parties' due process rights by allowing the Parties to move forward with this case on the following proposed revised schedule:

November 7, 2025	Parties complete depositions of fact witnesses
November 21, 2025	Disclosure of initial expert reports, if any
December 12, 2025	Disclosure of rebuttal expert reports, if any
January 6, 2026	Complete expert depositions; close of discovery
February 6, 2026	Complainant's initial brief, proposed findings of fact, and appendix
March 6, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
March 20, 2026	Complainant's reply and responses to proposed findings of fact

10. In making this joint motion, the Parties here have limited their request to the smallest amount of time which is needed to complete the last remaining deposition of a fact witness while keeping all other deadlines set forth in the Third Amended Scheduling Order the same. Further, the Parties believe that the foregoing schedule is a realistic period to conclude depositions and to conduct expert discovery.

11. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether

there is any opposition to the relief sought, to which there is none. The Parties each respectfully request the Presiding Officer grant the relief sought in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend the Deadline to Complete Depositions of Fact Witnesses be granted.

Dated: November 3, 2025

Respectfully submitted,

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